



Insurance Litigation Group
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CONTINGENT FEE AGREEMENT

_____ (hereafter jointly and/or severally called the "Client"), retains **Insurance Litigation Group, P.A.** and **The Professional Law Group, PLLC** (both herein referred to as "Lawyer") to represent Client in his/her/its claim(s) for damages and insurance benefits against Client's insurance carrier resulting from any accident, loss or occurrence that happened *on or about* _____ (the "Date of Loss"), located at: _____ (the "Property"). Client hereby authorizes and directs Lawyer to determine whether litigation should be initiated and when the lawsuit should be filed and to take all action(s) that Lawyer, in its sole discretion deems advisable and/or, reasonable in Lawyers representation of Client. Lawyer's representation does not include the handling of counterclaims, appeals or disputes with Client's public adjuster, contractor, mitigation vendor, roofer, handyman or any other vendor ("Third Parties").

(1) **Pre-Litigation/Adjusting Legal Fee:** The Client agrees to pay the Lawyer **20%** of the gross amount collected on the claim as its legal fee for services rendered. "Gross amount collected" means the amount collected before any subtraction of expenses and disbursements. This legal fee includes pre-litigation work such as investigating, adjusting, negotiating, advising, or processing the claim directly with the insurance company and applies to any recovery obtained during this stage, whether the payment is made voluntarily by the insurer or after the Lawyer's involvement.

(2) **Appraisal, Mediation, Litigation, or Arbitration Legal Fee:** The Client agrees to pay the Lawyer **33%** of the gross amount collected on the claim as its legal fee for services rendered. "Gross amount collected" means the amount collected before any subtraction of expenses and disbursements. This legal fee includes, without limitation, all services related to appraisal, mediation, litigation, or arbitration of the claim. This legal fee applies to any recovery obtained through or in connection with these processes, regardless of whether the Lawyer is the formal representative of record, and includes any funds obtained by award, judgment, order, or settlement. In the event there are any fees awarded by the Court as a sanction against the insurance company or the insurance company's attorney, Client consents and agrees that such fees shall solely be retained by Lawyer.

(3) The attorneys' fees in the case will be shared as follows: THE PROFESSIONAL LAW GROUP shall receive 25% of the net attorney's fees recovered (after all costs are reimbursed), and INSURANCE LITIGATION GROUP, PA shall receive 75% of the net attorney's fees recovered (after all costs are reimbursed) for any Pre-litigation payments; however, if the net legal fee is more than \$100,000, then the split shall be 30% to THE PROFESSIONAL LAW GROUP and 70% to INSURANCE LITIGATION GROUP, PA. If the file goes to lawsuit, then THE PROFESSIONAL LAW GROUP shall receive 20% of the net attorney's fees recovered (after all costs are reimbursed), and INSURANCE LITIGATION GROUP, PA shall receive 80% of the net attorney's fees recovered (after all costs are reimbursed); however, if the net legal fee is more than \$100,000, then the split shall be 25% to THE PROFESSIONAL LAW GROUP and 75% to INSURANCE LITIGATION GROUP, PA. In no event will the sharing of the attorney's fee's increase the attorney fees that Client will be charged under this Agreement, unless the Client otherwise agrees in writing.

(4) Client understands that Lawyer's fee is contingent upon recovery, that costs and expenses are the responsibility of Client regardless of outcome unless prohibited by law, and that no



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attorney's fee is owed unless a recovery is obtained, except as otherwise permitted by the Rules of Professional Conduct.

(5) In the event of insurer insolvency or the involvement of a guaranty association, Lawyer shall advise Client of any proposed modification to the fee arrangement. Any such modification shall be subject to Client's prior written consent. If your insurance company is put into insolvency [bankruptcy] then Lawyer shall be entitled to 40% (forty percent) of the gross amount recovered as its legal fees.

(6) In addition to Lawyers' fees noted above, Client understands and acknowledges that to advance their insurance claim, there will be costs that will need to be paid to outside vendors. Costs typically incurred include but are not limited to appraiser costs, umpire costs, court filing costs, summons, service of process, subpoenas, depositions, court reporter, transcripts, expert witness(es), and mediation costs. Typical expenses are estimated to be around \$5,000.00-\$10,000.00 depending on the specific facts of your case. Any proceeds from Client's claim shall first go to pay Lawyer's advanced costs. Client consents and agrees that the need for such costs shall be determined in the sole discretion of the Lawyer. Lawyer may, in its discretion, advance litigation costs on behalf of Client. In the event the Lawyer agrees to advance funds Client shall be obligated to reimburse Lawyer and pay for all costs expended on Client's behalf. Costs and expenses will be deducted from the gross amount collected after calculation of the Lawyer's contingent legal fee.

(7) Lawyer reserves the right to avoid the exposure of trial if, in Lawyer's sole discretion, it is determined that a trial is more likely than not to expose Client and/or Lawyer to a potential negative outcome. If after being advised that going to trial is not in Client or Lawyer's best interest, and Client still insists upon proceeding to trial OR the court requires the matter to proceed to trial despite attempts to avoid trial, Client acknowledges and agrees that Lawyer reserves the right, in its sole discretion to request an advance of costs prior to readying for trial. The amount of the trial retainer will cover anticipated costs of going to trial and Lawyer fees in preparing for trial. Additionally, before proceeding to trial, Client will need to reimburse Lawyer for all costs the firm has expended to date. In the event Client is unable to pay these costs and/or provide a retainer, Lawyer reserves the right to withdraw from this matter.

(8) If the Client terminates Lawyer's services without good cause or if the Lawyer is compelled to terminate its representation based upon the Client's improper conduct or Client's lack of cooperation, or due to the discovery of false, misleading, or fraudulent information that has been presented by the Client, Lawyer shall be entitled to a lien for attorney fees and costs. Should it be necessary for Lawyer to institute legal proceedings to collect fees or costs due, the losing party will pay the prevailing party's reasonable attorneys' fee and costs. The provisions of this paragraph related to payment and collection of fees and costs shall survive any such termination.

(9) If the Lawyer wishes to hire a lawyer in another firm to assist in the handling of a matter the Client agrees that Lawyer, at their sole discretion, may employ other counsel to assist them in prosecuting the Clients' claim or defense, such as co-counsel, coverage counsel, or local counsel. Client agrees that Lawyer may share their fees recovered under this Agreement with that other counsel. In no event will the sharing of the attorney's fee's increase the attorney fees that Client will be charged under this Agreement, unless the Client otherwise agrees in writing.

(10) If Client has retained Third Parties, for services in connection with Client's insurance claim, Client acknowledges that these Third Parties are an integral part of Client's post-loss recovery



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efforts, and that Lawyer has Client's consent and approval to speak directly to Third Parties to discuss Client's case. In the event a Third Party provides the Attorney with documentation that Client has agreed to pay for its services, then Client hereby irrevocably directs and authorizes the Attorney to honor that agreement and pay directly to the Third Party the full amount due and owed out of any gross amounts collected for services rendered or to be rendered. Furthermore, the Lawyer may legally be required to pay the claims of Third Parties out of any gross amounts collected for the Client, and not to disburse them to the Client. However, if the Client disputes the amount or validity of the Third Party claim, the Lawyer may deposit the funds into the registry of an appropriate court for determination. Any amounts paid to Third Parties will not be subtracted from the gross amount collected before computing the amount of the Lawyer's contingent legal fee.

(11) In the event a funding company provides advance payments to Client or any Third Party in connection with the claim in exchange for the right to collect insurance proceeds (the "Funding Company"), Client authorizes Lawyer to communicate and discuss with the Funding Company Client's claim, including any claimed right to payment. The Funding Company is also authorized to communicate directly with Lawyer regarding the claim.

(12) Client understands that if there is a mortgage on the property, the Client will be solely responsible for complying with any process required by their mortgage company and that Client's mortgage company may have a right to be a co-payee on all insurance checks pursuant to Client's mortgage/loan documents. Client understands that Lawyer is not retained to handle the endorsements, processing, issuance or reissuance of insurance proceeds checks involving Client and Client's mortgage company.

(13) Client hereby agrees to make diligent efforts to provide all information in relation to this matter that is in their possession, custody and/or control, including repair invoices, receipts, correspondence, and estimates. Client understands that there is an ongoing obligation to continue to forward any information and documentation that relates to this matter and agrees to continually update and provide said information and documentation. **Due to the nature of the insurance claims process and litigation, it is of the utmost importance that Client makes themselves available to be reached by the Lawyer. Client also agrees to provide the Lawyer with reasonable advance notice of any intention to repair or sell the subject property.** Client acknowledges that not providing relevant information and documentation in accordance with this ongoing obligation or a failure to update the Lawyer could potentially negatively impact Client's claim. Additionally, Client agrees to indemnify and hold Attorney, including its employees, officers and agents, harmless for any fines, costs, attorneys' fees, sanctions, court-imposed penalties, and/or other costs or expenses related to any action(s) taken against Client based upon the Client's improper conduct or Client's lack of cooperation, or to the discovery of false, misleading, or fraudulent information that has been presented by the Client.

(14) To expedite the post settlement processing and disbursement of all proceeds collected on behalf of Client, the Client hereby authorizes and directs the Lawyer to execute, sign and endorse the name of Client on their insurance claim check(s). Client authorizes Lawyer to deposit insurance claim check(s) into Lawyer's trust account for proper disbursement; Client indemnifies and holds Lawyer harmless for doing so. Lawyer will provide Client with a written settlement statement detailing the distribution of fees, costs, and the Client's net recovery.



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(15) Client understands and agrees that Lawyer has made no promises, guarantees, warranties, or representations concerning the outcome of Client's claim and the chances for success. Client further agrees that Client has not entered into any agreement with Lawyer which is not set forth in this Agreement. This Agreement cannot be modified or changed by any oral agreement. Any modification of this Agreement must be made in writing and signed by both the Client and Lawyer. This Agreement supersedes any and all prior agreements between the undersigned Client and Lawyer, whether written or oral.

(16) Hiring a Lawyer is an important decision, which should be approached with careful consideration. The decision to hire Lawyer is your own. Before signing this agreement, you should know that you have the sole right to choose and select a Lawyer of your own choosing, and that your choice should be made voluntarily and after careful consideration. Client affirms that their selection of Lawyer to represent Client is made solely and voluntarily by Client and not due to any solicitation or coercion on the part of Lawyer or any Third Party whatsoever. Client affirms that before signing, Client has read this Agreement and acknowledges and understands their obligations and rights.

(17) Client further understands that Lawyer does not represent Client with respect to the terms of this Agreement. Client is encouraged to have this Agreement reviewed by a Lawyer of Client's choice.

(18) By signing this Agreement, the undersigned affirms that they have full authority to engage Lawyer and to bind any and all parties with a legal, equitable, financial, or beneficial interest in the subject matter of this claim, including without limitation any spouse, co-insureds, additional insureds, assignees, lienholders, mortgagees, beneficiaries, or other interested persons or entities. The undersigned expressly agrees that this Agreement shall be valid, enforceable, and fully binding upon all such parties, regardless of whether they personally execute it, and authorizes Lawyer to act for all such parties in pursuing and resolving this matter.

(19) If any part of this Agreement is held invalid, the rest remains fully enforceable.

[The rest of this page is intentionally left blank.]

(20) THIS CONTINGENT FEE AGREEMENT MAY BE CANCELLED BY A WRITTEN NOTIFICATION TO THE LAWYER WITHIN THREE (3) BUSINESS DAYS OF SIGNING BY CLIENT. IF CANCELLED, CLIENT SHALL NOT BE OBLIGATED TO PAY ANY FEES TO LAWYER FOR ANY/ALL WORK PERFORMED DURING THAT TIME.

We are looking forward to working with you on this important matter.

WE HAVE EACH READ THE ABOVE AGREEMENT BEFORE SIGNING IT.

Client's Signature

Please print client name

Date

/s/ Mordechai L. Breier

Mordechai L. Breier, Esq.
INSURANCE LITIGATION GROUP, P.A.
1500 NE 162nd Street
North Miami Beach, FL 33162
E-mail: info@ilgpa.com

Client's Signature

Please print client name

Date



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LAW GROUP

Direction to Mail Check

Name: _____

Address: _____

Insurance Co.: _____

Policy #: _____

Date of Loss: on or about _____

I authorize and request the release of any and all drafts and/or checks in connection to the claim, with the above stated date of loss, issued by my Insurance Carrier, to be issued with Insurance Litigation Group, P.A.'s, name on the check and direct those drafts to be **mailed directly to Insurance Litigation Group, P.A. at the North Miami Beach address stated below. 1500 NE 162nd St, North Miami Beach FL 33162.**

Signature: _____

Printed Name: _____

Date: _____



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Letter of Representation

Name: _____

Address: _____

Insurance Co.: _____

Policy #: _____

Date of Loss: on or about _____

I/we, hereby retain Insurance Litigation Group, P.A. to represent Client(s) in his/her/its/their claim(s) for damages or insurance benefits against Client's insurance carrier resulting from any accident, loss or occurrence that happened on or about the reported date of loss at the Client's property, located at the above address.

Signature: _____

Printed Name: _____

Date: _____



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MORTGAGE COMPANY AUTHORIZATION AND CONSENT
TO RELEASE, DISCLOSE, MAIL AND DISCUSS INFORMATION

MORTGAGE COMPANY: _____

LOAN NUMBER: _____

Borrower

Co-Borrower

Name: _____

Address: _____

I understand that during this representation issues may arise involving the mortgage on my property. My attorneys are hereby fully authorized to communicate with and negotiate with my mortgage company. My mortgage company is hereby fully authorized to communicate with and to negotiate with my Lawyers. The above name borrower hereby authorizes the above-referenced Mortgage Company to release, disclose, discuss, mail and negotiate information with: **Insurance Litigation Group, P.A., 1500 NE 162nd St, North Miami Beach FL 33162.**

Signature: _____

Printed Name: _____

Date: _____



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Statute of Limitations and Policy Limitations Waiver Disclosure

Name: _____

Address: _____

Insurance Co.: _____

Policy #: _____

Date of Loss: on or about _____

If more than three (3) months have passed since the Date of Loss (DOL), the Client acknowledges that the deadlines set forth in the different Statute of Limitations (SOL) provisions and contractual time limitation periods set forth in Client's insurance policy, may apply, depending on the jurisdiction and the specific terms of the applicable insurance policy, which may limit or bar Client from recovery.

Certain insurance policies contain provisions that shorten the time frame to initiate legal actions, sometimes irrespective of the applicable state's statute of limitations.

Due to the SOL and policy deadline concerns, the Client should promptly provide Lawyer with a complete copy of the insurance policy, including all endorsements and amendments, if available. If the Client does not have immediate access to the insurance policy, Lawyer will make efforts to obtain it from the insurance carrier. However, the Client understands and acknowledges that time continues to run on any applicable legal or contractual deadlines while the policy is being located and reviewed, and that delay may limit or bar recovery.

The Client assumes this risk and indemnifies and holds Attorney harmless from any consequences, claims, or damage relating to the expiration of statutory or contractual deadlines, including but not limited to pre-suit requirements.

Signature: _____

Printed Name: _____

Date: _____

The Professional Law Group, PLLC Disclosures & Client Waivers

National Claims Funding Company, LLC (“NCF”) is a funding company that makes advance payments to an insured, a service provider, or other party who is owed money from an insurance claim in exchange for the right to collect money due to the insured, service provider, or other party later. If NCF provides funding connected with a claim, the resolution of that claim may result in the payment of an invoice that is owned by NCF or its affiliates. The Professional Law Group, PLLC, is owned by a Lawyer who is also a partial owner of a business entity that is a partial owner of NCF.

Potential Ownership of a Service Provider. The owner of The Professional Law Group, PLLC, is a partial owner of a business entity that may own an interest in one or more companies that could provide services in connection with this claim, such as an estimating company. These companies may also seek funding from NCF or another funding company. You are not required to use these companies for these services. You may select and pay for a Service Provider or funding company on your own. You are not required to use a particular Service Provider or funding company as a condition of representation by the law firm.

Attorneys’ Representation of or Assistance to Other Parties. The Professional Law Group, PLLC may also represent or assist some of the Service Providers, contractors, or other parties who are involved with the Claim, such as the restoration company; mold tester; plumber; roofer; estimator, etc. (“Service Providers”). After doing their work, the Service Providers may also seek funding from NCF or another funding company. I understand that The Professional Law Group, PLLC may assist and represent the Service Provider(s) and/or Funding Companies in pursuing payment for their services, in general, and/or under a Letter of Protection; and/or Direction to Pay; and/or assignment of benefits; or other device that Client may have provided to the Service Providers or to the funding company. The Professional Law Group, PLLC will not represent a Service Provider or a funding company in a dispute against Client and will not represent Client in a dispute against a Service Provider or funding company.

Relationship And Provision of Services. A relative of the owner of The Professional Law Group, PLLC, is an owner of a business entity that is a partial owner of NCF. That business entity may also be a partial owner of one or more Service Providers mentioned above. This person may periodically provide services to The Professional Law Group, PLLC, and be paid for doing so.

Acknowledgement And Waiver. By signing this document, Client acknowledges that (a) Client has been informed of and is aware of the information in it; and (b) Client consents to, have no objection to, and waive any potential or actual conflicts of interest that these relationships may present; (c) before hiring The Professional Law Group, PLLC, I have the opportunity to discuss these disclosures, waivers and the terms of the representation agreement with another Lawyer of my own choosing; and (d) Client is not obligated to hire The Professional Law Group, PLLC. and can limit this Lawyer’s Contingent Fee Retainer Agreement to only retaining the Insurance Litigation Group, PA.

Signature: _____

Printed Name: _____

Date: _____